

Human Rights Spring 2026

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Categorical Impairment: The false assumption encumbering universal morality and solutions through contemporary storytelling.

On October 25, 2023, the United Nations Security Council failed to pass a resolution calling for a humanitarian pause in Gaza. The United States cast a veto. Weeks later, the United Kingdom abstained from a separate resolution demanding an immediate ceasefire.ⁱ The Universal Declaration of Human Rights, ratified seventy-five years earlier as a reaction to the atrocities of World War II, recognizes "the inherent dignity and equal and inalienable rights of all members of the human family."ⁱⁱⁱ The gap between that language and what has unfolded not only in Gaza, but in Sudan, Myanmar, and the Uyghur detention camps, is most commonly blamed by contemporary scholarship on structural failures within the United Nations itself. What this discourse has not accounted for thus far is false assumptions upon which contemporary human rights architecture was constructed.

163 years before the ratification of the UDHR, Immanuel Kant was designing his categorical imperative—an ambitious attempt to create a universal morality system. In his *Grounding for the Metaphysics of Morals*, Kant rooted his arguments in *a priori* knowledge—knowledge independent of real experience.ⁱⁱⁱ From this foundation, he built a universal rule: everyone on

Earth must treat one another with dignity. The categorical imperative dictates that for an action to be morally sound in one case, it must be in all cases, regardless of circumstance. While philosophically elegant, the categorical imperative cannot realistically create a worldwide moral system because it rests on the false assumption that universal morality can transcend cultural identity. The defining documents of contemporary human rights architecture—The Declaration of Independence, the Declaration of the Rights of Man, and The Universal Declaration of Human Rights—were all structured around Kantian ideals and reflect this fallacy. However, this is regularly overlooked due to the obvious structural faults that exist in the bureaucracy of human rights enforcement, particularly the United Nations Security Council.

The five permanent members of the UNSC—the United States, Russia, China, France, and the United Kingdom—reflect the post-World War II world order, not the current one. They hold individual veto power, which means that any one of them can block enforcement action regardless of the scale of a human rights violation, provided that violation either serves their interests or implicates an ally. The result is a system that can only enforce universal principles when doing so is aligned with the security strategies of the world's most powerful governments. Realists would attribute this to the idea that human rights objectives are a means to an end rather than a genuine altruism; a tool for furthering a nation's own interests. The US, whilst portraying itself as a leader of democratic liberalism and defender of human rights, is a critical historical example of this. "The U.S. government's overriding priority during the Cold War ...[was] to combat the influence of the Soviet Union and the spread of communism. In some cases, the United States robustly supported democratization, such as in post-war Germany and Japan. In others, U.S. policy actively buttressed strategically important but repressive authoritarian allies

and partners, or...sought the subversion or overthrow of elected governments that some U.S. officials deemed to be antithetical to U.S. interests..."^{iv} A categorical imperative cannot be maintained if its primary enforcers are states, which are necessarily selective.

While this common analysis is not by any means incorrect or irrelevant, it becomes evident that there is a missing component to the discussion when examined at a more foundational level. That is, the foundation of Kant's categorical imperative. Kant falsely assumed that once all people were enlightened by this harmonious social ideal of democratic liberalism they would at once adopt it, that this philosophy would trump all philosophies engrained in them by cultural identity and personal experience. Thomas Jefferson followed suit in his writing of the Declaration of Independence simultaneously proclaiming that "all men are created equal" whilst enslaving more than six hundred people over the course of his life.^v Even the authors of these foundational human rights documents could not uphold the categorical imperative they considered self-evident. This is because their lived cultural contexts were in direct contradiction with it. The story of oppression across racial and ethnic lines was accepted in their zeitgeist, therefore manifesting itself in their lives with no regard for an idealized system of universal morality.

Kant claimed his philosophy arose purely from reason, not Western constructs, but his outline was framed by the European liberalism of his lived context. As a result, all three aforementioned documents are definitively individualist, secular, and premised on a particular understanding of freedom that is not self-evidently shared across all human cultures. To illustrate this, let's assess a more contemporary case from France. France is intensely secular, perceiving religious devotion

as a rejection of the republic. In 2004, France banned all religious symbology—including the headscarves worn by many female, Muslim immigrants—from the public sphere. The headscarf ban was framed as movement against sexual violence. Supporters cast themselves as liberators, relying on the image of a sexually violent Arab male as a foil to the oppressed veiled girl. This story of sexual emancipation in this case is a guise for racism. Furthermore, the ban resulted in Muslim girls not attending school, excluding them from citizenship formation.^{vi} This is an example of attempting to apply a categorical imperative in practice; a ban applied regardless of cultural context. The intention may have been to protect young women's rights, but the effect was that it isolated them from their communities and the rest of society, putting their rights at greater risk.

Consider how human cooperation has historically functioned: We operated in individual tribes for thousands of years because one person can only maintain around 150 relationships at a time—Dunbar's number.^{vii} Everything from our tongues, to religions, to environments, to moral systems was highly variable and context-driven. However, what sets us apart from other animals is this ability to share stories of religion, history, and goals that connect us to one another and allow us to cooperate in massive networks without ever even meeting one another. The idea of universal human rights is itself a story. With written language our stories transcend time and space, and therefore so do our relationships with one another.^{viii} Developing from clay tablets into instantaneous digital media, there is now little stopping us technologically from delivering human rights to everyone. Were Kant's assumptions accurate, we would all believe the gospel, and tribalism would effectively cease to exist. But tribalism is not a moral failure to be reasoned away—it is instinctual, structural, and deeply embedded in the cognitive architecture that makes

large-scale human cooperation possible at all. It is counterintuitive to constantly attempt to enforce a universal morality system that contradicts those basic instincts.

Tribalistic stories are the key missing component of contemporary human rights discourse.

Within a state, a shared history is a stronger connective tissue, and far more influential, than a national security strategy ever could be. The only reason we ever see human rights defended at all is thanks to effective storytelling, which accounts for cultural differences rather than trying to smother them. Thus, it's incorrect to believe that states exclusively act in their own self-interest; they may behave altruistically when influenced by a powerful enough story. This was illustrated by former US Secretary of State Madeleine Albright, the Liberal Internationalist Hawk who spearheaded the 1999 NATO intervention in Kosovo. Her own family had experienced genocide at the hands of the Nazis in Czechoslovakia, and she carried with her the abandonment of her country of origin by the Western powers.^{ix} She made it clear that a lesson had to be learned from the genocide in Bosnia just a few years earlier where the UN practically handed some 8,372 Bosnian Muslims over for slaughter. This story clearly resonated with her, as she asserted that the international community "would be judged very harshly" should it fail to uphold human rights once again.^x It was this personal biography and these stories that drove her to authorize airstrikes against Serbia in order to protect Kosovo Albanians. Notably, the NATO airstrikes were carried out without a United Nations Security Council resolution. The stories were so moving to her that she subverted the bureaucracy altogether.

States may be the mechanism by which humanitarian action is taken, but they cannot be relied on to be intrinsically motivated to uphold a categorical imperative. We are storytelling creatures who cooperate based on shared narratives, and whose lives are deeply nuanced. The categorical imperative demands we look past these limitations through pure reason, requiring people to abandon the stories that give their lives meaning. It is therefore critical when discussing contemporary human rights issues that we spend more time examining which stories are being told and by whom. Powerful stories allow us to connect across contexts and account for cultural differences. They are critical tools in upholding rights initiatives that may otherwise die on the floor of the Security Council Chamber, taking human lives with them.

ⁱ United Nations Security Council. "US Vetoes Resolution on Gaza Which Called for Immediate Humanitarian Ceasefire." UNISPAL, 8 Dec. 2023, www.un.org/unispal/document/us-vetoes-resolution-on-gaza-which-called-for-immediate-humanitarian-ceasefire-dec8-2023/.

ⁱⁱ United Nations. "Universal Declaration of Human Rights." 1948, www.un.org/en/about-us/universal-declaration-of-human-rights.

ⁱⁱⁱ Kant, Immanuel. *Groundwork of the Metaphysics of Morals*. 1785. Edited by Mary Gregor and Jens Timmermann, Cambridge UP, 2011.

^{iv} "Democracy and Human Rights in U.S. Foreign Policy." Congressional Research Service Report R47890, Congressional Research Service, 2024.

^v "Slavery FAQs." *Monticello*, Thomas Jefferson Foundation, www.monticello.org/slavery/slavery-faqs.

^{vi} Ticktin, Miriam. "Sexual Violence as the Language of Border Control: Where French Feminist and Anti-Immigrant Rhetoric Meet." *Signs: Journal of Women in Culture and Society*, vol. 33, no. 4, Summer 2008, pp. 863–89.

vii Dunbar, Robin I. M. "Dunbar's Theory: How Many Friends Can You Really Have?" *Flashpack*, accessed 18 Feb. 2026, www.flashpack.com/us/solo/relationships/friendship/dunbars-theory/.

viii Harari, Yuval Noah. *Nexus: A Brief History of Information Networks from the Stone Age to AI*. Random House, 2024.

ix "Kosovo: Why Is NATO Bombing Yugoslavia?" *BBC News*, BBC, 25 Mar. 1999, news.bbc.co.uk/2/hi/special_report/1999/03/99/kosovo_strikes/315053.stm.

x Albright, Madeleine. Interview. *Frontline*, PBS, www.pbs.org/wgbh/pages/frontline/shows/kosovo/interviews/albright.html.